

ENCAP ENERGY CAPITAL FUND XII-C, L.P.

**AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP**

This Amendment (“**Amendment**”) to the Amended and Restated Agreement of Limited Partnership of EnCap Energy Capital Fund XII-C, L.P., a Delaware limited partnership (the “**Partnership**”), is entered into effective August 31, 2023 (the “**Effective Date**”), by the General Partner (as defined below) in its capacity as the general partner of the Partnership. All capitalized terms used but not defined in this Amendment shall have the meanings ascribed to them in the Partnership Agreement (as defined below).

RECITALS

A. Reference is herein made to the Amended and Restated Agreement of Limited Partnership, dated as of May 17, 2023, by and among EnCap Equity Fund XII GP, L.P., a Delaware limited partnership (the “**General Partner**”), as the general partner, and the Limited Partners, governing the Partnership (the “**Partnership Agreement**”).

B. Pursuant to Section 12.1 of the Partnership Agreement, the General Partner has proposed to amend the Partnership Agreement as provided in this Amendment.

NOW, THEREFORE, as of the Effective Date, it is hereby agreed as follows:

1. Amendments to the Partnership Agreement.

a. Section 5.3(b) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(b) The General Partner has the liabilities set forth herein and, unless otherwise modified herein to the extent permitted by applicable law, under the Act to (i) Persons other than the Partnership and the other Feeder Partners and (ii) the Partnership and the other Feeder Partners. To the extent permitted by applicable law, no Covered Person shall be liable to the Partnership or any Feeder Partner, and each Feeder Partner does hereby release such Covered Person, for any act or omission, including any mistake of fact or error in judgment, taken, suffered or made by such Covered Person in good faith and in the belief that such act or omission is in or is not contrary to the best interests of the Partnership and is within the scope of authority granted to such Covered Person by this Agreement, provided that such act or omission (x) in the instance of a Covered Person, other than a member of the LPAC, was not the result of fraud, willful or intentional misconduct or criminal wrongdoing, Gross Negligence, a material breach of applicable securities laws or a breach of this Agreement, the Management Agreement, or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Feeder Limited Partners’ investment in the Partnership and (y) in the instance of a Covered Person who is or was a member of the LPAC, was not the result of fraud or willful or intentional misconduct.

- b. Section 5.4(a) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(a) The Partnership shall indemnify to the maximum extent permitted under the Act and save harmless each Covered Person from and against any and all losses, claims, demands, liabilities, expenses, judgments, fines, settlements and other amounts arising from any and all claims, demands, actions, suits or proceedings, whether civil, criminal, administrative or investigative, of whatever nature that may accrue to or be incurred by any Covered Person or in which a Covered Person may be involved, or threatened to be involved, as a party or otherwise, that relates to or arises out of the Partnership or its business and affairs. Notwithstanding the foregoing, (i) no Covered Person shall be indemnified by the Partnership for any acts or omissions by the Covered Person that (A) in the instance of a Covered Person, other than any member of the LPAC or any Feeder Limited Partner represented by any member of the LPAC, constitute fraud, willful or intentional misconduct or criminal wrongdoing, Gross Negligence, a material breach of applicable securities laws or a breach of this Agreement, [the Management Agreement](#), or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Feeder Limited Partners' investment in the Partnership or (B) in the instance of a member of the LPAC or any Feeder Limited Partner represented by any member of the LPAC, that constitutes fraud or willful or intentional misconduct and (ii) no Covered Person in its capacity as a Feeder Limited Partner shall be indemnified for any losses arising from its Commitment to or interest in the Partnership.

- c. Section 5.4(g) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(g) A Covered Person shall not be denied indemnification in whole or in part under this [Section 5.4](#) because the Covered Person had an interest in the transaction with respect to which the indemnification applies if the transaction was otherwise permitted and approved pursuant to the terms of this Agreement and in the absence of any fraud, willful or intentional misconduct or criminal wrongdoing, Gross Negligence, a material breach of applicable securities laws or a breach of this Agreement, [the Management Agreement](#), or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Feeder Limited Partners' investment in the Partnership on behalf of the Covered Person and its Affiliates.

2. **Effect.** Except as expressly modified by this Amendment, the terms and provisions of the Partnership Agreement remain in full force and effect in accordance with their terms. This Amendment shall bind and benefit the partners of the Partnership and their respective heirs, beneficiaries, administrators, executors, receivers, trustees, successors and assigns.
3. **Counterparts.** This Amendment may be executed in one or more counterparts, each of which shall be an original and all of which shall constitute but one and the same document.

4. **Applicable Law.** Section 13.6 of the Partnership Agreement is hereby incorporated by reference into this Amendment and shall apply as if fully set forth herein *mutatis mutandis*.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties hereto have executed this Amendment as of the date and year first above written.

GENERAL PARTNER:

ENCAP EQUITY FUND XII GP, L.P.

By: EnCap Equity Fund XII GP, LLC, its
general partner

By: EnCap Investments L.P., its sole member

By: EnCap Investments GP, L.L.C., its general
partner

By: EnCap Investments Holdings, LLC, its sole
member

By: EnCap Partners, LP, its managing member

By: EnCap Partners GP, LLC, its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

SIGNATURE PAGE TO AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP OF
ENCAP ENERGY CAPITAL FUND XII-C, L.P.